

		\$30,000.00 for attorneys' fees; \$12,362.35 for litigation costs; \$10,000.00 for settlement administration costs; and \$5,000.00 total PAGA penalties (\$3,750.00 to the LWDA). The final accounting hearing is scheduled for <u>January 14, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
2	Barragan v. California Mantel & Fireplace, Inc. 2021-01193396	Off calendar.
3	Barragan v. California Mantel & Fireplace, Inc. 2021-01235971	Off calendar.
4	Chavez v. RBA Builders, Inc. 2022-01259829	<u>Plaintiff's Motion for Preliminary Approval of Class Action Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$400,000 class action settlement. The court has the following questions and comments: 1. In the August 14, 2025 order (ROA 103), the court noted that paragraph 3.2.2(a) of the settlement agreement stated that "all payroll taxes, including employer payroll taxes, will be paid out from the Gross Settlement Amount." Settlement Agreement ¶ 3.2.2.(a). The court stated that this provision was inconsistent with other paragraphs of the settlement agreement (e.g., ¶¶ 1.21, 1.25) and inconsistent with the notice (e.g., §§ 3(1), 3(2)). The court stated that if the parties nevertheless propose to have "all payroll taxes, including employer payroll taxes" paid from the gross settlement amount, the parties must: (i) state specifically which taxes are proposed to be included in "all payroll taxes"; (ii) state the estimated amount of the deduction from the gross settlement amount for "all payroll taxes, including employer payroll taxes"; and (iii) explain why that deduction from the gross settlement amount is appropriate as the employment tax obligation is generally the employer's independent responsibility. In the supplemental filing, plaintiff states that the parties have agreed that defendant's employer payroll taxes shall be paid from the gross settlement amount. Supp. Moon Decl. (ROA 126) at 1:24-2:16. Plaintiff cites <i>Cifuentes v. Costco</i>